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LUMBINI DEVELOPMENT TRUST ACT, 2042

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Amending Acts

1. Lumbini Development Trust (First Amendment) Act, 2048 2048.7.28
2. Lumbini Development Trust (Second Amendment) Act, 2050 2050.7.4
3. Some Nepal Acts Amending Act Relating to Sports and Culture, 2053 2053.9.3

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4. Some Nepal Laws Amending Act, 2063 2063.6.28
5. Republic Strengthening and Some Nepal Laws Amending Act, 2066 2066.10.7
6. Some Nepal Acts Amending Act, 2072 2072.11.13
7. Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075 2075.11.19

Act Number 11 of the year 2042

An Act Made to Provide for the Lumbini Development Trust

Preamble: Whereas, to present to the world the commitment of the Government of Nepal to make the goal and ideals of developing Lumbini more effective and, accordingly, to coordinate and smoothly operate the Lumbini Development Plan, it is desirable to provide for a Lumbini Development Trust,

His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act on the advice and with the consent of the Rastriya Panchayat. 1. Short Title and Commencement: (1) This Act may be called the "Lumbini Development Trust Act, 2042".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Lumbini Development Area" means the birthplace of Lord Buddha, Lumbini, and areas including Tilaurakot (ancient Kapilavastu), Gotihawa, Niglihawa, Sagarhawa, Sisaniakot, Arurakot, Kudan (Kapilavastu), Devdaha (Rupandehi), Ramgram (Nawalparasi), which are directly or indirectly related to the life of Lord Buddha, and other areas specified by the Government of Nepal by publishing a notice in the Nepal Gazette. Provided that while specifying areas in this manner, only those areas directly or indirectly related to the life of Lord Buddha may be specified.

(b) "Trust" means the Lumbini Development Trust established pursuant to Section 3.

(c) "Patron" means the Patron of the Trust.

(d) "Council" means the Lumbini Development Council established pursuant to Section 8.

(e) "Chairperson" means the Chairperson of the Council.

(f) "Vice-Chairperson" means the Vice-Chairperson of the Council.

(g) "Treasurer" means the Treasurer of the Council.

(h) "Member-Secretary" means the Member-Secretary of the Council.

(i) "Member" means a member of the Council and includes the Chairperson, Vice-Chairperson, Treasurer, and Member-Secretary of the Council.

(j) "Committee" means the Executive Committee formed pursuant to Section 11A.

(k) "Project Implementation Committee" means the Project Implementation Committee formed pursuant to Section 12.

(l) "Plan" means the Lumbini Development Plan.

(m) "Prescribed" or "as prescribed" means prescribed or as prescribed in the regulations made under this Act.

3. Establishment of the Trust: (1) A Trust named the Lumbini Development Trust is hereby established for the development of Lumbini.

Such Trust shall be an institution not established for profit. (2) The Lumbini Development Trust shall be called "Lumbini Development Trust" in the English language. 4. Trust to be an Autonomous Body: (1) The Trust shall be an autonomous and corporate body with perpetual succession. (2) The Trust shall have its own separate seal for all its acts and business. (3) The Trust may, like a person, acquire, use, sell, or otherwise dispose of movable and immovable property. (4) The Trust may, like a person, sue or be sued in its own name. Amended by the Second Amendment. 5. Patron: The Prime Minister shall be the Patron of the Trust. 6. Objectives of the Trust: The objectives of the Trust, Amended by Some Nepal Laws Amending Act, 2063. subject to the policy approved by the Government of Nepal, shall be as follows: (a) To provide or cause to be provided cash, kind, or any other type of assistance from any area within or outside Nepal Removed by the Republic Strengthening and Some Nepal Laws Amending Act, 2066. for the Plan, (b) To collect or cause to be collected donations from within or outside Nepal Removed by the Republic Strengthening and Some Nepal Laws Amending Act, 2066. for the Plan, (c) To directly contact persons or institutions within or outside Nepal Removed by the Republic Strengthening and Some Nepal Laws Amending Act, 2066. to provide assistance or receive donations for the Plan, (d) To analyze work plans and provide funds for the approved Plan, (e) Added by the First Amendment. To send a member or any other person to inspect whether the amount allocated for the prescribed program, as approved by the Committee, has been properly utilized, (f) To make alterations in the work plan if deemed necessary for the interest of the Plan, (g) To form committees and sub-committees as necessary within or outside Nepal Removed by the Republic Strengthening and Some Nepal Laws Amending Act, 2066. for the fulfillment of the objectives of the Plan, (h) To evaluate the work and actions of committees and sub-committees formed pursuant to clause (g), (i) To determine policies and provide guidance for committees and sub-committees formed pursuant to clause (g), (j) To maintain close and cooperative relations with the Government of Nepal, (k) To do or cause to be done any other necessary work for the achievement of the objectives of the Trust. 7. 8.

Formation of the Council: (1) For the purpose of making policies regarding the fulfillment of the objectives of

the Trust and providing necessary guidance and direction to the Committee, a Lumbini Development Council shall be formed as the supreme body of the Trust as follows: Amended by Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075. (a) Minister or Minister of State for Culture, Tourism and Civil Aviation ? Chairperson (b) Person nominated by the Government of Nepal ? Vice-Chairperson (c) Removed by the Republic Strengthening and Some Nepal Laws Amending Act, 2066 (d) Amended by Some Nepal Acts Amending Act Relating to Sports and Culture, 2043. Four Secretaries nominated by the Government of Nepal from among the Secretaries of the Government of Nepal ? Member (e) Four persons nominated by the Government of Nepal from among government institutions, non-governmental Buddhist institutions, and renowned distinguished experts ? Member (f) Four persons nominated by the Government of Nepal from among representatives of international organizations and persons renowned in the preservation of man-made heritage ? Member (g) Person nominated by the Government of Nepal ? Treasurer (h) Person nominated by the Government of Nepal ? Member-Secretary (2) The Government of Nepal may, by publishing a notice in the Nepal Gazette, make necessary additions, deletions, or alterations to the members pursuant to sub-section (1). 9. Term of Office: (1) The term of office of nominated members shall be five years, and they may be renominated after the expiry of the term. (2) If the office of any member falls vacant before the expiry of the term, another member shall be nominated for the remaining term. Amended by Some Nepal Laws Amending Act, 2063. (3) If the Chairperson or a member resigns, they shall be deemed to have been released from their office. 10. Amended by the Second Amendment. 11. Amended by the Second Amendment. Meeting of the Council: (1) The Member-Secretary shall summon the Amended by the Second Amendment. meeting of the Council at the date, time, and place specified by the Chairperson. (2) Transformed by the Second Amendment. The meeting of the Council shall be chaired by the Chairperson, and in the absence of the Chairperson, by the Vice-Chairperson. In the absence of both the Chairperson and the Vice-Chairperson, a member chosen by the members from among themselves shall chair the meeting. (3) Notice of the meeting shall ordinarily be given one month in advance.

Amended by the First Amendment. (4) Transformed by the Second Amendment. If fifty percent of the total number of members of the Council are present, Transformed by the Second Amendment. the quorum for the meeting of the Council shall be deemed to have been met. (5) The opinion of the majority shall prevail in the meeting, and in the case of a tie, the person chairing the meeting shall have a casting vote. (6) Transformed by the Second Amendment. The meeting of the Council shall ordinarily be held twice a year. The Chairperson may call additional meetings if deemed necessary. (7) The Member-Secretary shall maintain a record of the decisions of the meeting. (8) The allowances and other facilities to be received by members for participating in the meeting shall be as prescribed. (9) Except as provided in this Section, other procedures of the meeting shall be as prescribed. Added by the Second Amendment. 11A. Formation of the Committee: (1) For the purpose of conducting the overall work and operations of the Trust under the general direction of the Council, an Executive Committee shall be formed as follows: (a) Chairperson of the Council ? Chairperson (b) Vice-Chairperson of the Council ? Vice-Chairperson (c) Treasurer of the Council ? Member (d) Four members nominated by the Chairperson from among the Members ? Member Removed by Some Nepal Acts Amending Act, 2072 (e) Chief, Lumbini Development Trust Plan ? Member (f) Member-Secretary, Council ? Member-Secretary (2) The term of office of the Chairperson, Vice-Chairperson, Members, and Member-Secretary of the Committee shall be for the period they remain members of the Council. (3) If the office of any nominated member of the Committee falls vacant for any reason, the Chairperson shall nominate another member from among the other members of the Council for the remaining period. Added by the Second Amendment. 11B.

Meeting of the Committee: (1) The meeting of the Committee shall be held at the date, time, and place

specified by the Chairperson of the Committee. (2) If fifty percent of the total number of members of the Committee are present, the quorum for the meeting of the Committee shall be deemed to have been met. (3) In the absence of the Chairperson, the Vice-Chairperson shall chair the meeting, and in the absence of both the Chairperson and the Vice-Chairperson, a member chosen by the members from among themselves shall chair the meeting. (4) The opinion of the majority shall prevail in the meeting of the Committee, and in the case of a tie, the person chairing the meeting may give a casting vote. (5) The decision made by the meeting of the Committee shall be certified by the Member-Secretary of the Committee. (6) Other procedures relating to the meeting of the Committee shall be as determined by the Committee itself. 12. Project Implementation Committee: (1) A Project Implementation Committee shall be formed under the supervision, direction, and control of the Committee at the office of the Trust for implementing the Plan. (2) The Project Implementation Committee shall consist of persons nominated by the Chairperson. (3) Until a Project Implementation Committee is formed pursuant to sub-section (1), the Lumbini Development Committee existing at the time of commencement of this Act shall function as such Committee under this Act. 13. Fund and Account: (1) The Trust shall have the authority to collect donations in any currency from any part of the world for the Lumbini Development Plan. (2) The Trust shall consist of the following amounts: (a) Amount provided by the Government of Nepal for the Plan, (b) Donations provided by persons or institutions within or outside Nepal Removed by the Republic Strengthening and Some Nepal Laws Amending Act, 2066 for the Plan, (c) Amount received from other sources. (3) The amount of the Trust may be deposited in any currency in Nepal Rastra Bank and other banks within or outside Nepal Removed by the Republic Strengthening and Some Nepal Laws Amending Act, 2066 (4) All expenses to be incurred on behalf of the Trust shall be borne by the Trust. (5) The operation of the account of the Trust shall be as prescribed. Amended by Some Nepal Acts Amending Act Relating to Sports and Culture, 2053.13A. Approval of the Government of Nepal Required for Agreements: The Trust shall obtain the approval of the Government of Nepal when entering into agreements with any domestic or foreign institution or body in the course of its operations. 14.

Accounts and Audit: (1) The accounts of income and expenditure of the Trust shall be maintained as prescribed. (2) The audit of the Trust shall be conducted by the Office of the Auditor General. (3) The Government of Nepal may, if it wishes, inspect the account books, related documents, and other cash and kind of the Trust at any time. 15. Delegation of Powers: The Committee may delegate its powers, as necessary, to Added by the Second Amendment.the Chairperson of the Committee, a Member, the Project Implementation Committee, or other committees or sub-committees or representatives of such committees or sub-committees. 16. Power to Make Regulations: For the fulfillment of the objectives of this Act, Added by the Second Amendment.the Committee may, with the approval of the Government of Nepal, make necessary regulations. 17. Contact with the Government of Nepal: The Trust shall make contact with the Government of Nepal through Amended by Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075.the Ministry of Culture, Tourism and Civil Aviation. 18. Tax Exemption: No direct or indirect tax, fee, or levy of any kind, including income tax, house and land tax, vehicle tax, interest tax, sales tax, registration fee, and customs duty, imposed by the government or Amended by Some Nepal Acts Amending Act, 2072.local level, shall be levied on the capital, income, and property of the Trust. Provided that the Trust shall pay charges or fees applicable for any service. 19. Repeal and Savings: (1) The Lumbini Development Committee (Formation) Order, 2032 is hereby repealed, and all movable and immovable property of the Committee formed under that Order shall vest in the Trust. Provided that the Lumbini Development Committee formed under that Order shall remain in existence until a Project Implementation Committee is formed pursuant to sub-section (1) of Section 12. (2) All contracts, leases, and agreements entered into by the Committee pursuant to sub-section (1) shall be deemed to have been entered into with the Trust, and all

acts and actions performed by that Committee shall be deemed to have been performed by the Trust.